

**U.O.Note No.1045/SC.D/87-3, Genl.Admn. (SC.D) Dept., dt.30.11.1987 regarding records that should be sent by Anti-Corruption Bureau for issue of Sanction Order by the competent authority.**

**Subject Heading : Sanction of prosecution - furnishing of records**

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Ref : From the Director General, Anti-Corruption Bureau, Hyderabad, Lr.No.134/RPC(C)/87, dt.29.08.1987.

The Director General, Anti-Corruption Bureau, in his letter cited has stated that in the Central Government in cases investigated by the Central Bureau of Investigation, the investigation reports (final reports) are sent for according sanction for prosecution of the Accused Officers under the Prevention of Corruption Act, 1947 and that the Law also does not contemplate the sending of Case Diary Files to the authorities for sanction of prosecution, that in the final reports of investigation of Anti-Corruption Bureau the statements of witnesses, references of various documents and important contents of all documents including oral evidence are reflected and hence there is no need to send the Case Diary Files and requested to issue instructions to all concerned in the matter.

2. The matter has been considered with reference to the Law and the practice prevailing in the Central Government. For according sanction for prosecution under section 6 of the Prevention of Corruption Act, the sanctioning authority has to apply its mind to the facts of the case and satisfy itself whether a case is made out against the accused officer and for this, the authority concerned should have all the material in regard to the case before it. However, in view of the reflection in the final report of Anti-Corruption Bureau regarding statements of witnesses, references of various documents and important contents of all documents including oral evidence, it is considered not necessary to call for the Case Diary Files from the Anti-Corruption Bureau. However, if the sanctioning authority calls for the Case Diary Files to further satisfy itself in regard to the existence of a prima facie case, where so required the Director General, Anti-Corruption Bureau, will furnish the Case Diary Files to the concerned sanctioning authorities.

3. All the Departments of the Secretariat are requested to follow the above in the matter of calling of Case Diary Files from the Anti-Corruption Bureau for according sanction for prosecution of public servants.